

from the Karnataka and the Punjab and Haryana high courts voluntarily disclosed their assets in the past week, saying they had nothing to hide. The apex court judges met in its aftermath, their hands virtually forced by the path-breaking decisions of Justices J. Shailendra Kumar and K. Kannan. Kumar had created a flutter in judicial circles last week by questioning Balakrishnan's authority to oppose the move on behalf of all higher court judges. Almost simultaneously, Justice Kannan of the Punjab and Haryana High Court voluntarily declared his assets totalling about Rs 16 lakh in his and his wife's name.

Kumar and Kannan have set a precedent that other judges may find hard not to follow. The judiciary is the cornerstone of the republic and still remains its most respected arm. Though the legislatures and the executive have been debased and devalued over the years by the recklessness of politicians who consider themselves beyond the reach of the long arm of the law, the judiciary was seen as the last unshakeable pillar, fiercely independent and best equipped to keep a check on the executive. But it is a measure of the levels to which the image of the judiciary has slipped in

recent years that now the clamour for cleansing has risen from within. In the past, the worst accusation hurled against it was that sections of the judiciary were politically pliant. Few judges, if ever, were accused of accumulating questionable assets. But a string of controversies over the years has eroded its credibility.

Nearly 16 years ago, the judicial system struggled to come to terms with the first ever impeachment motion after V. Ramaswamy, a Supreme Court judge, was found guilty of misconduct by a committee of three brother judges. The motion was lost after the then ruling Congress abstained from voting in the Lok Sabha. Since then, courts have been fodder for politicians and are often seen as part of the political system. The courts' attitude in disposing of cases—particularly those involving the rich or high profile politicians, be it Lalu Prasad Yadav, Mayawati, Mulayam Singh Yadav or J. Jayalalithaa—makes an average citizen believe that justice is only for those with deep pockets or strong political connections.

When litigants' long queues for justice get longer by the day and judges are regularly caught with their hands in the till, both the cred-

NO YOUR HONOUR

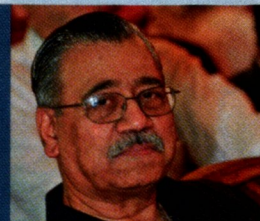
The judiciary had its share of lows with some of India's legal guardians

K. VEERASWAMI: The former judge of the Madras High Court was found guilty under the Prevention of Corruption Act, 1946, but fought his case in 1991 in the Supreme Court. The apex court, in a later judgement, held that a sanction from the CJI was needed before a criminal case could be registered against a judge.

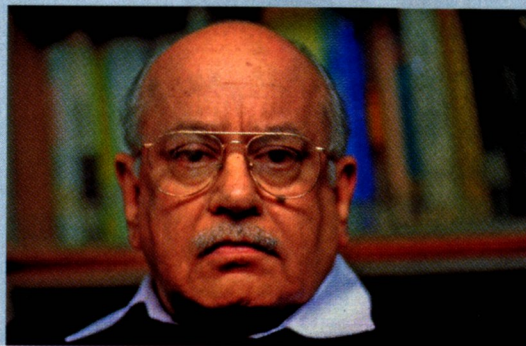
V. RAMASWAMY: The son-in-law of K. Veeraswami was the first judge to face impeachment for financial irregularities committed during his term as a Punjab and Haryana High Court judge. He got away as Congress MPs stayed away from voting in the Lok Sabha.



A.M. AHMADI: As CJI (October 1994-March 1997), his daughter, a practising lawyer, was accused of getting special treatment from certain judges. Members of Bar sought a resolution banning lawyer-relatives of judges from staying in the same house but the motion was voted out by the members.



A.S. ANAND: He was accused of using his position as the CJI to get the subordinate judiciary to rule in favour of his wife and mother-in-law in a suit that had been barred by limitation for two decades. There was also a CBI probe after a dispute arose over his age in 2000. The investigation report was not made public.



SHAMIT MUKHERJEE: A Delhi court framed charges against former Delhi High Court judge Shamit



Mukherjee and four others in 2008 in a DDA land scam case. According to the CBI, the former judge granted an interim stay in favour of

co-accused Khatri, after taking undue benefits which prevented the DDA from repossessing the encroached land from him.